

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

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SAM WILLIAMS,

SUMMONS

Plaintiff,

-against-

Plaintiff resides at:
732 Marilyn lane
Baldwin, New York 11510

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, LIEUTENANT KEVON SAMPLE,
POLICE OFFICER NELSON HERNANDEZ, POLICE
OFFICER RYAN O'DEA

Defendants,

-----X
To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after service of this Summons or within 30 days after the service is complete if this Summons is not personally delivered to you within the state of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is the place of incident.

Dated: Melville, New York
March 15, 2018

Yours, etc.

SCOTT A. WOLINETZ, P.C.

Scott Wolinetz

By Scott Wolinetz

Attorney for Plaintiff

150 Broadhollow Road, Suite 208

Melville, New York 11747

(631) 423-1133

DEFENDANT'S ADDRESS

THE CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
c/o CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

LIEUTENANT KEVON SAMPLE, OF THE
19th Precinct tax registry #935679
153 East 67th Street, New York, NY, 10065

POLICE OFFICER NELSON HERNANDEZ, OF THE
19th Precinct
153 East 67th Street, New York, NY, 10065

POLICE OFFICER RYAN O'DEA, OF THE
19th Precinct tax registry #952063
Patrol Borough Manhattan North
151 West 100th Street
New York, NY, 10025

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

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SAM WILLIAMS

VERIFIED COMPLAINT

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, LIEUTENANT KEVON SAMPLE,
POLICE OFFICER NELSON HERNANDEZ, POLICE
OFFICER RYAN O'DEA,

Defendants,

-----X

Plaintiff, by and through his attorney, SCOTT A. WOLINETZ, P.C. complaining of the
Defendants herein, upon information and belief, respectfully show to this Court, and allege as
follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned, the Plaintiff was a resident of the County of Nassau, City and State of New York.
2. That at all times hereinafter mentioned Defendant, THE CITY OF NEW YORK was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, NEW YORK CITY POLICE DEPARTMENT was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
4. That at all times hereinafter mentioned Defendants, LIEUTENANT KEVON SAMPLE OF THE 19th PRECINCT was and still is employed with the NEW YORK CITY POLICE DEPARTMENT.

5. That at all times hereinafter mentioned Defendants, POLICE OFFICER NELSON HERNANDEZ OF THE 19th PRECINCT was and still is employed with the NEW YORK CITY POLICE DEPARTMENT.

6. That at all times hereinafter mentioned Defendants, POLICE OFFICER RYAN O'DEA OF PATROL BOROUGH MANHATTAN NORTH was and still is employed with the NEW YORK CITY POLICE DEPARTMENT.

7. That prior to the institution of this action, a Notice of Claim was duly served upon and filed with the CITY OF NEW YORK on behalf of Plaintiffs.

8. That a hearing was held by the CITY OF NEW YORK pursuant to Municipal Law 50-h.

9. That at all time herein mentioned, LIEUTENANT KEVON SAMPLE, POLICE OFFICER NELSON HERNANDEZ and POLICE OFFICER RYAN O'DEA OF THE 19th PRECINCT, were acting within the scope and course of their employment with the New York Police Department, and under color of State Law.

10. That at all times herein mentioned, LIEUTENANT KEVON SAMPLE, POLICE OFFICER NELSON HERNANDEZ and POLICE OFFICER RYAN O'DEA OF THE 19th PRECINCT, were acting in their individual and official capacity as employees of Defendants THE CITY OF NEW YORK (CITY) and NEW YORK CITY POLICE DEPARTMENT (NYPD).

11. That all the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

STATEMENT OF FACTS AS TO ALL CAUSES OF ACTION

12. On or about June 29, 2017 at approximately 5:00 p.m., Plaintiff SAM WILLIAMS was a lawful pedestrian standing outside the funeral home located at 82nd Street and Madison Avenue paying his respects for the rap singer named Prodigy in the County, City and State of New York.

13. At or about said place and time, the plaintiff had finished paying his respects and was on his way home to visit with his children.

14. At or about said place and time, the plaintiff had finished paying his respects when he was standing across the street from the funeral parlor and was approached in an aggressive fashion by Defendant POLICE OFFICER NELSON HERNANDEZ.

15. At or about said place and time, the plaintiff began to video Officer HERNANDEZ'S actions and Officer HERNANDEZ and attempted to swipe the phone out of his hands and physically assaulted him.

16. At or about said place and time, the plaintiff began to cross the street when he was confronted by LIEUTENANT KEVON SAMPLE who engaged Plaintiff and asked him if he wanted to fight, then stood on the street facing him separated by a motor vehicle with Plaintiff standing on the curb and continued to taunt, abuse verbally, and otherwise confront Plaintiff in an aggressive manner.

17. At or about said place and time Plaintiff was filming the events as they transpired.

18. At or about said place and time Plaintiff was then accosted by POLICE OFFICER RYAN O'DEA and other officers where he was assaulted battered, thrown to the ground verbally abused and otherwise the victim of unnecessary force by these officers.

19. The officers then transported plaintiff SAM WILLIAMS to an unknown precinct and then to central booking.

20. Plaintiff went before an arraignment judge and was advised that he was being charged with resisting arrest and disorderly conduct. He was given a six month ACD and released approximately noon the following day.

21. Thereafter, the plaintiff was released and obtained medical treatment at Harlem Hospital.

22. The individual Defendants, LIEUTENANT KEVON SAMPLE, POLICE OFFICER NELSON HERNANDEZ and POLICE OFFICER RYAN O'DEA OF THE 19th PRECINCT, under color of state law, subjected Plaintiffs to the foregoing acts and omissions without due process of the law, thereby depriving Plaintiff of his rights, privileges and immunities secured by the First, Fourth and Fourteenth Amendments to the United States Constitution, including without limitation, deprivation of the following constitutional rights: (a) freedom from unreasonable searches and seizure of their person, including the excessive use of force; (b) freedom from arrest without probable cause; (c) freedom from false imprisonment, meaning wrongful detention without good faith, reasonable suspicion or legal justification of which Plaintiff was aware and did not consent; (d) freedom from the lodging of false charges against them by police; (e) freedom from abuse of process; and (f) the enjoyment of equal protection, privileges and immunities under the laws.

FIRST CAUSE OF ACTION FOR VIOLATION OF PLAINTIFFS' RIGHT UNDER THE
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION PREDICATED UPON FALSE ARREST AND IMPRISONMENT
AND UNDER NEW YORK STATE LAW

23. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

24. That on or about June 29, 2017 at approximately 5:00 pm., THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, its agents, servants and employees, including but not limited to LIEUTENANT KEVON SAMPLE, POLICE OFFICER NELSON HERNANDEZ and POLICE OFFICER RYAN O'DEA OF THE 19th PRECINCT, wrongfully and falsely arrested, imprisoned and detained Plaintiffs without any right or justifiable grounds therefore.

25. That on or about June 29, 2017 at approximately 5:00 pm., Defendant LIEUTENANT KEVON SAMPLE, POLICE OFFICER NELSON HERNANDEZ and POLICE OFFICER RYAN O'DEA OF THE 19th PRECINCT jointly and severally in their capacity as police officers,

wrongfully entered, stopped, handcuffed and seized the Plaintiff about his person, causing him physical pain and mental suffering. At no time did Defendants have legal cause to enter, stop, handcuff, seize or touch Plaintiff, nor did Plaintiff consent to this illegal touching nor was or privileged by law.

26. Plaintiffs was thereafter held at an unknown precinct for a total of approximately 19 hours until he was released by a judge.

27. That the aforesaid arrest, detention and imprisonment continued at the unknown Precinct and Central Booking in New York, New York and elsewhere.

28. That the said arrest, detention and imprisonment was caused by the CITY, its agents, servants and employees, including but not limited to the Defendant police officers, without a warrant and without any reasonable cause or belief that Plaintiff was in fact guilty of any crime.

29. That the CITY, its agents, servants and employees, as set forth above, intended to confine Plaintiff; that Plaintiff was conscious of the confinement; that Plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

30. As a result of the aforesaid actions, including the arrest and imprisonment of Plaintiffs without probable cause, LIEUTENANT KEVON SAMPLE, POLICE OFFICER NELSON HERNANDEZ and POLICE OFFICER RYAN O'DEA OF THE 19th PRECINCT deprived Plaintiff of his rights, privileges and immunities secured by the Constitution and Laws of the United States of America and the Fourteenth Amendment.

31. As a result of the aforementioned actions, LIEUTENANT KEVON SAMPLE, POLICE OFFICER NELSON HERNANDEZ and POLICE OFFICER RYAN O'DEA OF THE 19th PRECINCT deprived Plaintiffs of the right to be free from unreasonable search and seizures

secured by the Constitution and Laws of the United States of America and the Fourth and Fourteenth Amendments.

32. As a result of the aforementioned actions, Defendants deprived Plaintiff of his right to liberty without due process of law secured by the Constitution and Laws of the United States of America and the Fifth and Fourteenth Amendments.

33. The aforementioned acts of Defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to Plaintiff's rights.

34. That by reason of the false arrest, imprisonment and detention of Plaintiff, Plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in their credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and were caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

35. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986.

SECOND CAUSE OF ACTION AGAINST DEFENDANT CITY
MONELL CLAIM PURSUANT TO 42 U.S.C § 1983

36. Plaintiffs repeat and reallege each and every allegation contained herein as if fully set forth at length herein.

37. All of the acts and omissions by the individual LIEUTENANT KEVON SAMPLE, POLICE OFFICER NELSON HERNANDEZ and POLICE OFFICER RYAN O'DEA OF THE 19th PRECINCT, described above were carried out pursuant to overlapping policies and practices of the CITY which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent and cooperation and under the supervisory authority of Defendants CITY and the NEW YORK CITY POLICE DEPARTMENT (NYPD).

38. Defendants CITY and NYPD, by their policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual Defendants' wrongful acts and/or failed to prevent or stop those acts and/or allowed those acts to continue.

39. LIEUTENANT KEVON SAMPLE, POLICE OFFICER NELSON HERNANDEZ and POLICE OFFICER RYAN O'DEA OF THE 19th PRECINCT arrested, incarcerated and assaulted Plaintiffs in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize Plaintiffs' liberty, well-being, safety and constitutional rights.

40. At all times mentioned herein, said police officer was acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

41. LIEUTENANT KEVON SAMPLE, POLICE OFFICER NELSON HERNANDEZ and POLICE OFFICER RYAN O'DEA OF THE 19th PRECINCT did stop, seize, search, assault and commit a battery and grab the persons of the Plaintiffs without a court authorized arrest or search warrant. They did physically seize the persons of the Plaintiffs during the arrest process in an unlawful and excessive manner.

42. The Plaintiff was falsely arrested, unlawfully imprisoned and maliciously prosecuted without the Defendants' possessing probable cause to do so.

43. The above actions of Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution.

- a. Freedom from assault to his person.
- b. Freedom from battery to his person.
- c. Freedom from illegal search and seizure.
- d. Freedom from false arrest.
- e. Freedom from malicious prosecution.
- f. Freedom from the use of excessive force during the arrest process.

g. Freedom from unlawful imprisonment.

44. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiffs' rights.

45. Defendant CITY has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when it's police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based upon probable cause.

46. The direct and proximate results of the Defendants' acts are that Plaintiff suffered severe and permanent injuries of a psychological nature. They were forced to endure pain and suffering to their detriment.

THIRD CAUSE OF ACTION FOR VIOLATION OF PLAINTIFFS' RIGHTS UNDER THE
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION PREDICATED UPON THE USE OF EXCESSIVE FORCE UPON
PLAINTIFF AND UNDER NEW YORK STATE LAW

60. Plaintiffs repeat and reallege each and every allegation contained herein as if fully set forth at length herein.

61. That on or about June 29, 2017 at approximately 5:00 p.m., LIEUTENANT KEVON SAMPLE, POLICE OFFICER NELSON HERNANDEZ and POLICE OFFICER RYAN O'DEA OF THE 19th PRECINCT jointly and severally in their capacity as police officers, wrongfully entered, stopped, handcuffed and seized the Plaintiff about their person, causing them physical pain and mental suffering. At no time did Defendants have legal cause to enter, stop, handcuff, seize or touch Plaintiff, nor did Plaintiff consent to this illegal touching nor was or privileged by law.

62. As a result of the aforementioned actions, Defendant LIEUTENANT KEVON SAMPLE, POLICE OFFICER NELSON HERNANDEZ and POLICE OFFICER RYAN O'DEA OF THE 19th PRECINCT deprived Plaintiff of the right to be free from the use of excessive force secured by the Constitution and Laws of the United States of America and the Fourth and Fourteenth Amendments.

63. As a result of the aforementioned actions, Defendants deprived Plaintiff of his right against the use of excessive force against their persons secured by the Constitution and Laws of the United States of America and the Fifth and Fourteenth Amendments.

64. The aforementioned acts of Defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to Plaintiff's rights.

65. That by reason of the false arrest, imprisonment and detention of Plaintiff, Plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in their credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and were caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

66. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986.

WHEREFORE, Plaintiffs demand judgment against Defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for their pain and suffering, loss of enjoyment of life, and economic loss, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and Plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees, and together with costs and disbursements.

Dated: Melville, New York
March 15, 2018

Yours, etc.

SCOTT A. WOLINETZ, P.C.

Scott Wolinetz

By Scott Wolinetz

Attorney for Plaintiff

150 Broadhollow Road, Suite 208

Melville, New York 11747

(631) 423-1133

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

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SAM WILLIAMS

VERIFICATION

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, LIEUTENANT KEVON SAMPLE,
POLICE OFFICER NELSON HERNANDEZ, POLICE
OFFICER RYAN O'DEA,

Defendants,

-----X

SCOTT A. WOLINETZ an attorney duly admitted to practice law in the Courts of New York, affirms the following to be true:

1. That I am a principal of SCOTT A WOLINETZ PC, attorney for the plaintiffs in the within action. That I have read the foregoing complaint and know the contents thereof, and that the same are true to my knowledge, except as to the matters herein stated to be alleged upon information and belief, and that as to these matters I believe them to be true.
2. That the sources of my information and knowledge are records and investigation reports maintained within the file.
3. That the reason this verification is made by the affirmant and not by the plaintiff is that the plaintiff does not reside in the County of New York, which is the county wherein this firm maintains its office.

Dated: Melville, New York
March 15, 2018

Yours, etc.

SCOTT A. WOLINETZ, P.C.

Scott Wolinetz

By Scott Wolinetz
Attorney for Plaintiff

150 Broadhollow Road, Suite 208
Melville, New York 11747
(631) 423-1133

INDEX NUMBER
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COUNTY OF BRONX

SAM WILLIAMS

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, LIEUTENANT KEVON SAMPLE,
POLICE OFFICER NELSON HERNANDEZ, POLICE
OFFICER RYAN O'DEA,

Defendants,

SUMMONS AND VERIFIED COMPLAINT

SCOTT A. WOLINETZ, P.C.

Attorneys for Plaintiff

150 Broadhollow Road, Suite 208

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